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Case Number: 25NWCV00368 Hearing Date: August 20, 2026 Dept: L

I.

Defendants/Cross-Defendants/Cross-Complainants

Greystar California, Inc. and B9 MF 12350 Del Amo LLC's Motion for Summary

Judgment is GRANTED.

II.

Defendant/Cross-Defendant/Cross-Complainant

City of Cerritos' Motion for Summary Judgment is GRANTED.

III.

Defendant/Cross-Defendant/Cross-Complainant

City of Lakewood Motion for Summary Judgment is GRANTED.

IV.

Defendants/Cross-Defendants/Cross-Complainants

Yaseerarafat G. Shaikh and Mahejabin Mirza's Motion for Summary Adjudication is

GRANTED as to the first, second, third, and fourth causes of action and is

DENIED as to the fifth cause of action.

Moving party to give notice.

Background

This is a wrongful death action.

On January 29, 2025, Plaintiff Brian Anakin Hill-Alamina, a minor, by and

through his guardian ad litem, Angela Hill, individually and as wrongful death

beneficiary and successor-in-interest to decedent Brian Alamina, ("Plaintiff")

filed this action against Defendants City of Lakewood, City of Cerritos, County

of Los Angeles, State of California, Greystar California, Inc., and Does 1 to 100.

The Complaint alleges that Brian Alamina ("Decedent") was killed in a motor vehicle accident on roadways that were negligently owned, designed, and maintained by Defendants such that there was an unreasonable risk of harm to Decedent. Specifically, in June 2024, Decedent "was traveling eastbound on Del Amo Boulevard between Norwalk Boulevard and Claretta Avenue when a vehicle operated by Yaseerarafat G. Shaikh attempted a U-turn [from the westbound side of the road] and collided with [him]." (Compl., ¶ 1.) The Complaint alleges causes of action for 1) Negligence, 2) Premises Liability, 3) Negligence - Dangerous Condition of Public Property, 4) Survival Action (erroneously labeled as "Third Cause of Action"), and 5) Wrongful Death.

Various amendments, cross-pleadings, and dismissals have been filed. As amended, the Complaint asserts claims against Defendants the City of Lakewood, the City of Cerritos, The People of the State of California, acting by and through the Department of Transportation, Greystar California, Inc., Yasseerarafat G. Shaikh, Mirza Mahejabin, B9 MF 12350 Del Amo LLC, and Monterey Lakewood Owner, LLC (collectively, "Defendants"). The Defendants have filed a total of five cross-claims directed amongst themselves.

On August 6, 2026, the Court sustained Defendant Monterey Lakewood Owner, LLC's Demurrer to the Complaint without leave to amend. (8/6/26 Minute Order.)

There are four matters on calendar for today's hearing:

- Defendants/Cross-Defendants/Cross-Complainants
Greystar California, Inc. and B9 MF 12350 Del Amo LLC's Motion for Summary Judgment, in the alternative, Summary Adjudication
- Defendant/Cross-Defendant/Cross-Complainant
City of Cerritos' Motion for Summary Judgment, in the alternative, Summary Adjudication
- Defendant/Cross-Defendant/Cross-Complainant

City of Lakewood Motion for Summary Judgment, in the alternative, Summary Adjudication

- Defendants/Cross-Defendants/Cross-Complainants

Yaseerarafat G. Shaikh and Mahejabin Mirza's Motion for Summary Judgment, in the alternative, Summary Adjudication

Preferential trial in this matter
is set for September 30, 2026.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c, subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, internal citations omitted.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.)

In moving for summary judgment, a defendant has met its "burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

Once a moving party has satisfied the initial burden of proof, the burden "shifts to the opposing party to show, by responsive separate statement and admissible evidence, that triable issues of fact exist." (Ostayan v. Serrano Reconveyance Co. (2000) 77

Cal.App.4th 1411, 1418, disapproved on other grounds by *Black Sky Cap., LLC v. Cobb* (2019) 7 Cal.5th 156, 165.) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

I.

Greystar California, Inc. and B9 MF
12350 Del Amo LLC's MSJ/MSA

Evidentiary Objections

Greystar and B9's evidentiary objections are in the improper format pursuant to California Rules of Court, Rule 3.1354(b). Specifically, each objection is not numbered consecutively. Further, the evidentiary objections to Plaintiff's responses disputing Greystar and B9's purported undisputed material facts are inappropriate. Evidentiary objection should be directed at Plaintiff's evidence only, not Plaintiff's legal argument or interpretation of Greystar and B9's evidence.

The Court notes that Plaintiff attempts to object to evidence in the Separate Statement. Such objections are improper. Evidentiary objections must be "must be served and filed separately from the other papers in support of or in opposition to the motion" pursuant to California Rules of Court, Rule 3.1354(b).

Thus, both parties' evidentiary objections are overruled.

Discussion

Greystar California, Inc. ("Greystar") and B9 MF 12350 Del Amo LLC ("B9") now move for summary judgment or adjudication as to 1) Plaintiff's negligence, premises liability, survival action, and wrongful death causes of action in the Complaint, 2) Cross-Complainant City of Lakewood's Cross-Complaint for equitable indemnity, contribution, declaratory relief, and 3) Cross-Complainants Yaseerarafat G. Shaikh and Mahejabin Mirza's Cross-Complaint for equitable indemnity, contribution, declaratory relief.

Greystar and B9 explain the alleged motor vehicle collision took place at Del Amo Boulevard, co-owned by City of Cerritos and the City of Lakewood. (COE, Exh. A, Papa Depo., 12:13-16, 13:11-15, 24:5-24; COE, Exh. B.) Greystar and B9 were the owners and manager of Vicino Apartments, located at 12350 Del Amo Boulevard, Lakewood (“the Apartments”), at the time of the subject accident. (Billings Decl., ¶¶ 2-3; Widing Decl., ¶¶ 2-3.) Plaintiff’s theory of liability against Greystar and B9 “focus solely on an ‘exit only gate’ that was near where the U-turn and subsequent accident took place.” (Mot., 7:2-3.)

Negligence, Premises Liability, Survival Action, and Wrongful Death

In order to state a claim for negligence, Plaintiff must allege the elements of (1) “the existence of a legal duty of care,” (2) “breach of that duty,” and (3) “proximate cause resulting in an injury.” (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.) Premises liability shares its elements with negligence: duty, breach, causation, and damages. (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.)

California Code of Civil

Procedure section 377.30 provides that the decedent’s personal representative or, if none, the decedent’s successor in interest may commence a decedent’s cause of action that survives decedent’s death. (Code Civ. Proc., § 377.30; see Adams v. Superior Court (2011) 196 Cal.App.4th 71, 78-79.)

“The elements of a cause of action for wrongful death are a tort, such as negligence, and resulting death.” (Lopez v. City of Los Angeles (2011) 196 Cal.App.4th 675, 685.)

Greystar and B9 initially note that all of Plaintiff’s claims are based in negligence. Thus, Plaintiff must prove all elements of negligence for the claims to survive. Greystar and B9 primarily argue that neither of them owned any duty to protect motorists—here, Decedent—from hazards occurring on adjacent public roadways that they neither own, possess, maintain, nor control. As previously noted, the accident occurred on publicly owned property. Further, Greystar and B9 argue that a private owner

only owe a duty to those harmed on public property when the owner creates a hazard or asserts control over the public property. Plaintiff asserts that certain modifications were made to the Apartments' exiting and entrance gates such that the driver who hit Decedent was forced to make a left U-turn to go eastbound on Del Amo Boulevard in order to enter the Apartments. Greystar and B9 provide the following evidence in arguing that they did not contribute to any dangerous condition on the public road by virtue of the gate modifications:

- In

2011/2012 the City of Lakewood approved an application for permit from the then-owners of the apartments to change the front wall of the apartment complex, which would also include removing two of four driveways and make it one central driveway as well as upgrading the exit only gates per approved plans. The process included submission and approval of a traffic study. (COE, Exhs. B-E.)

- Ms.

Mirza, the driver of the van that collided with Decedent and a resident of the Apartments, admitted that she never had an issue making a U-turn at the subject median. (COE, Exhs. H-I.)

- At

the time of the accident, Ms. Mirza had an unobstructed view of traffic comings towards her and did not see the motorcycle until it collided with her van. (COE, Exhs. H.)

- Eye-witness

Ali Ahmed Faraz stated that he had never seen an accident in that location in the 10-12 years he had been driving that roadway. (COE, Exh. J.)

- In

conjunction with the prior owners of the apartment complex's application to the City of Lakewood to improve the front of the property, Site Access Evaluation was prepared by Traffic Engineer Keil Maberry with the firm Linscott Law & Greenspan. (COE, Exhs. D, K.)

o

Maberry concluded that "no significant unsafe alternative movements will be created by the proposed Project that include additional westbound U-turn movements at Driveway No. 1 median break [the

“exit-only” gate].”

o

Maberry further concluded that “motorists entering and exiting the Project site from the proposed new right in/right-out driveway will be able to do so comfortably, safely and without undue congestion.”

- Per

the City of Lakewood, there have been no previous complaints or accidents in or as to the area where the incident occurred. (COE, Exh. B, F.)

Because Plaintiff cannot establish the element of duty, Cross-Complainants derivative claims also fail.

The Court finds that Greystar and B9 have met their initial burden of proof.

In opposition, Plaintiff asserts that Greystar and B9 owed a duty to Plaintiff where they knew of, or could reasonably discover, that a dangerous condition existed on its premises. Plaintiff argues that a variety of factors present at the subject area gave rise to a dangerous condition. Specifically, after modifications in 2012, the two entrance driveways to the Apartments were no longer aligned with any of the median breaks on Del Amo Boulevard. (Simoes Depo., 88:16-20.) As a result, motorists traveling westbound on Del Amo Boulevard must make a U-turn to enter the Apartments, whereas before, they could make a left turn to enter. (Lee Depo., 124:3-13.) Further, there was a misleading left-turn arrow at the median break, even though no left turn was possible due to the “exit-only” gate. (Kwasniak Decl., ¶¶ 88-92, 222.) According to an empirical field observation conducted in October 2024 by traffic engineer Andrew Kwasniak, the modification “concentrated vehicle U-turns from the median area, eastbound right turn ingress, driveway egress, curbside parking activity, and pedestrian activity into the same roadway environment, creating a zone with overlapping conflicts from multiple directions. (Kwasniak Decl., ¶ 109.) For example, Mr. Kwasniak measured one vehicle making a U-turn at the median break every 84 seconds at the peak traffic hour, a higher rate before the gate modifications. (Kwasniak Decl., ¶¶ 101-105.) Plaintiff argues that such dangerous condition would have been evident to any property owner exercising due care.

Plaintiff notes that the Site

Access Evaluation was not a “traffic study.” (Kwasniak Decl., ¶¶ 97-98.)

According to the City of Lakewood Director of Public Works, Dario Simoes, the City did not consider such report in approving the modifications. (Simoes Dep., 97:19-25.) The City of Lakewood did not conduct its own traffic engineering analysis to determine whether the roadway modification was safe. (Simoes Dep., 98:6-11.)

Plaintiff further asserts that it

is of no relevance that the accident did not occur on premises owned by Greystar and B9. Plaintiff argues that the placement of the entrances and exits at the Apartment “forced hundreds of people daily into an unnecessarily dangerous U-turn maneuver.” (Mot., 10:25.)

In reply, Greystar and B9 assert

that Plaintiff cannot establish a triable issue of fact as to duty. Plaintiff’s own expert, Andrew Kwasniak, states that he offers no opinion on “duty.” (See Kwasniak Decl., ¶¶ 2, 18, 42, 59.) Mr. Kwasniak further admits that Greystar and B9 only controlled the “private components of the access system.” (See Kwasniak Decl., ¶¶ 18, 65.) Mr. Kwasniak’s criticisms only involve features of the public roadway, including “the public median break, the ‘standard left-turn lane-use arrow,’ the swept-path width once curbside parking is counted, and the U-turn geometry.” (Reply, 9:20-22.) Further, Plaintiff presents no legal authority that Greystar and B9 had a duty to conduct traffic studies when they implemented the 2012 modifications.

“Whether a defendant owed

a duty of care to an injured plaintiff is a question of law, and the existence of a duty depends on the foreseeability of the risk and a weighing of policy considerations for and against imposition of liability.” (Romero v. Superior Court (2001) 89 Cal.App.4th 1068, 1080.)

Premises liability is simply a

species of negligence “grounded in the possession of [a] premises and the attendant right to control and manage the premises.” (Kesner v. Superior Court (2016) 1¿Cal.5th 1132, 1158, quotation marks omitted.) The theory relies on a crucial premise: that the defendant in a premises liability action owns or controls the property on which a plaintiff’s injury took place. (Martin v. Gladston (2023) 96 Cal.App.5th 681,

689 [collecting precedents]; *Kinsman v. Unocal Corp.* (2005)
37 Cal.4th 659, 672 [“proper test” is reasonable care in “management of
[one’s] property”]; *Soto v. Union Pacific Railroad Co.* (2020)
45 Cal.App.5th 168, 177.)

“[U]sually, a landowner has no
duty to prevent injury on adjacent property.” (*Annocki v. Peterson
Enterprises, LLC* (2014) 232 Cal.App.4th 32, 37.) “But there are
exceptions to the general principle.” (*Id.* at p. 38.) “ ‘[T]he duty
of care encompasses a duty to avoid exposing persons to risks of injury that
occur off site if the landowner’s property is maintained in such a
manner as to expose persons to an unreasonable risk of injury offsite.’
[Citation.]” (*Ibid.*)

The Court finds that Plaintiff
has failed to establish a triable issue of fact as to duty. Plaintiff’s theory
is that the “exit-only” gate at the Apartments and the placement of the median
break 1) forced drivers traveling westbound to make U-turn at the median break
to enter the Apartments, and 2) increased the frequency of U-turns at the
median break, creating a dangerous condition on the public road. The Court
finds that the connection between the gate modifications and the increased risk
of danger to those similarly situated to Decedent—i.e., those traveling
eastbound on Del Amo Boulevard—is too attenuated. The Court notes that Plaintiff
primarily takes issue with features of the road (i.e., the dimensions of
the U-turn area, the left-turn arrow on the road, etc.) that Greystar and B9 had
no control over.

Specifically, there is no
indication that Greystar and B9 knew or reasonably should have known that a
dangerous condition existed at the Apartments such that those on the public
road were at risk of harm. Greystar and B9 had a Site Access Evaluation
prepared by Traffic Engineer Keil Maberry and submitted such report to the City
of Lakewood, and the City subsequently approved the gate modifications
application. (See COE, Exhs. B-E, K.) Even if the City of Lakewood did not
consider the Site Access Evaluation in approving the application as Plaintiff
contends, the Court finds that Greystar and B9 could have still reasonably
relied on the City’s ultimate approval. Further, Greystar and B9 provide evidence
that, according to the City of Lakewood, there have been no previous complaints
or accidents at the area where the incident occurred. (COE, Exhs. B, F.) Based
on such evidence, the Court is not persuaded that Greystar and B9 knew or

should have known the “exit-only” gate modifications created a dangerous condition on the public road.

In an attempt to dispute such evidence, Plaintiff only argues that a lack of official complaints or accidents does not consider “near misses, aborted turns, emergency braking, reversing, hesitation within the conflict area, unreported property-damage events, or conflicts between U-turning vehicles, driveway traffic, pedestrians, and motorcycles.” (See Kwasniak Decl., ¶ 143-147.) Further, Plaintiff argues that there is no evidence that Greystar and B9 performed a traffic study after the gate modifications were completed. The Court finds such evidence is insufficient to create a triable issue of fact. Firstly, plaintiff provides no affirmative evidence that the configuration of the roadway features created dangers that Greystar and B9 could have become aware of. Second, Plaintiff provides no authority that Greystar and B9 was under a duty to conduct a formal traffic study after the gate modifications. Plaintiff’s expert explicitly stated that he does not opine on the issue of duty. (See Kwasniak Decl., ¶¶ 3, 42, 59, 154, 214.) The bottom line is that there was no reason for Greystar and B9 to foresee any harm to those similarly situated to Decedent.

In consideration of all evidence, the Court is not persuaded that Plaintiff has established foreseeability of harm such that a duty should be imposed on Greystar and B9.

Because Plaintiff has failed to establish a triable issue of fact as to the element of duty, the Court grants summary judgment in favor of Greystar and B9. The Motion for Summary Judgment is granted on these grounds.

Standing

Greystar and B9 assert that Plaintiff has not proven by clear and convincing evidence that he is the heir to Decedent. Thus, Plaintiff has no standing. Specifically, Greystar and B9 note that Plaintiff “was born in November 2024, five months after the accident” and that “[the Decedent] is not listed on Plaintiff’s birth certificate.” However, no evidence is offered in support of such assertion. Greystar and B9 generally rely on Plaintiff’s discovery responses, in which 1) Plaintiff admitted there is no evidence establishing by a clear and convincing standard that the decedent Brian Alamina is the biological father of plaintiff, 2) Plaintiff

admitted there are no DNA testing results establishing by clear and convincing evidence that decedent Brian Alamina is the biological father of plaintiff, 3) Plaintiff admitted no paternity tests had been conducted, and 4) Plaintiff responded that documents evidencing Decedent's paternity have never been in plaintiff's possession, custody or control. (COE, Exhs. L-M.)

The Court finds that
Greystar and B9 have met their initial burden of proof.

In opposition, Plaintiff asserts that he is under no obligation to offer evidence of Decedent's paternity via DNA testing results to establish standing. Neither would it be possible to obtain such evidence, because the Decedent passed away prior to Plaintiff's birth. Further, Plaintiff's mother would not be able to collect a DNA sample post-mortem because she is not Decedent's legal wife, heir, or relative. (Hill Decl., ¶ 4.) Regardless, Plaintiff argues that, pursuant to *Berry v. Chaplin* (1946) 74 Cal.App.2d 652, testimony that Decedent was the only person Plaintiff's mother had intercourse with within the nine months before Plaintiff's birth is sufficient to establish paternity. (See Hill Depo., 19:17-20:3, 103:7-9.) Further, under Probate Code section 6453, subdivision (b)(3), DNA evidence is only one method to prove paternity of a child born after a decedent's death. Plaintiff further provides other circumstantial evidence suggesting that Plaintiff is the biological son of Decedent. (See Hill Decl., ¶¶ 6-11, Exhs. A-F.)

In reply, Greystar and B9 argue that Plaintiff's paternity evidence is barred by his verified discovery admissions and responses, which are in contradiction to the evidence attempts to offer now.

“'[A] relationship of parent and child exists between a person and the person's natural parents, regardless of the marital status of the natural parents.' (Prob. Code, § 6450, subd. (a), italics added.) 'Natural parent' is defined by Probate Code section 6453. . . [A] biological father is a 'natural parent' if '[p]aternity is established by clear and convincing evidence that the father has openly held out the child as his own.' (Prob. Code, § 6453, subd. (b)(2).) However, if '[i]t was impossible for the father to hold the child out as his own,' the biological father is a 'natural parent' if 'paternity is established by clear and convincing evidence.' (Id., subd. (b)(3).)” (*Cheyanna M. v. A.C.*

Nielsen Co. ("Cheyanna") (1998) 66 Cal.App.4th 855, 867.)

Firstly, the Court finds

that Plaintiff's discovery responses are not necessarily in contradiction to Plaintiff's paternity evidence offered in support of the opposition. In response to Request for Admission No. 39, which requests Plaintiff to "[a]dmit that there is no evidence establishing by a clear and convincing standard that decedent Brian Alamina is the biological father of plaintiff Brian Anakin Hill-Alamina," Plaintiff objected and substantively responded: "At the time of these responses, Responding party admits." (COE, Exh. L.) Based on this response, the Court finds Plaintiff was not precluded from offering further evidence on this issue. The other Requests for Admission (Nos. 40-41) seek admissions regarding "paternity tests" and "DNA testing." (Ibid.) Plaintiff objected and substantively responded: "Admit." (Ibid.) The Requests for Production (Nos. 8-9) seek documents that Decedent was the "biological father" of Plaintiff and "documents of any DNA testing." (COE, Exh. M.) Plaintiff objected and substantively responded "A diligent search and a reasonable inquiry have been conducted in an attempt to locate documents and/or items, which are responsive to this Request. Plaintiff is unable to comply for the reason that the requested documents have never been in plaintiff's possession, custody or control. Discovery and investigation are ongoing, and Plaintiff reserves the right to amend and/or supplement this response should additional information become available." (Ibid.)

Plaintiff concedes that no

DNA testing could be conducted, and thus, it makes sense that Plaintiff would have had no evidence or documentation showing paternity. However, DNA testing is not necessarily needed to establish paternity, as pointed out by Plaintiff. (See Prob. Code, § 6453, subd. (b)(3) [stating that clear and convincing evidence "may include genetic DNA evidence acquired during the parent's lifetime"], emphasis added.)

The Court notes that, "[w]hen a motion for summary judgment is made in a case where the plaintiff's claim carries a clear and convincing burden of proof, the evidence and all inferences which can reasonably be drawn therefrom must meet that higher standard. . . [Such rule] does not denigrate the role of the jury. It by no means authorizes trial on affidavits. Credibility determinations, the weighing of the evidence, and the drawing of legitimate inferences from the facts are jury functions, not those of a judge, whether he is ruling on a motion for summary judgment or for a directed verdict." (Rowe v. Superior

Court (1993) 15 Cal.App.4th 1711, 1724, internal quotations and citations omitted.)

Here, Angela Hill

Plaintiff's mother, has testified that 1) Decedent is Plaintiff's father, and 2) she had a sexual relationship with Decedent only within 9 months of Plaintiff being born. (Hill Depo., 19:14; 7-20:3, 103:7-9.) At least one court has found that a mother's testimony that she had sexual intercourse with the father and no other persons as substantial evidence of paternity. (See, e.g., *Berry v. Chaplin* ("Berry") (1946) 74 Cal.App.2d 652, 661-663 [finding that plaintiff established a prima facie case in a filiation proceeding, absent evidence contradicting and overcoming the plaintiff's evidence, to uphold a jury verdict].) Plaintiff's motion has also offered circumstantial evidence in the form of Plaintiff's baptism invitation, his gender reveal invitation, a photo of him being kissed Decedent's mother, and text messages between Decedent, Ms. Hill, Decedent's mother, and Decedent's sister. (Hill Decl., ¶¶ 6-11, Exhs. A-F.) The Court finds that Plaintiff's evidence is sufficient to create a triable issue of fact as to his standing.

However, even if Plaintiff might be able to establish standing, summary judgment may still be granted because no triable issue of fact exists as to the issue of duty. In other words, Defendant has shown Plaintiff cannot establish the element of duty, and thus all of Plaintiff's derivative causes of action fail. (See Code Civ. Proc., § 437c, subd. (p)(2).) Because summary judgment is granted as to the Complaint, summary judgment may also be granted as to Cross-Complainant City of Lakewood and Cross-Complainants Yaseerarafat G. Shaikh and Mahejabin Mirza's respective Cross-Complaints for equitable indemnity, contribution, declaratory relief.

Conclusion

Based on the foregoing, Greystar and B9's Motion for Summary Judgment is GRANTED as to Plaintiff's Complaint and Cross-Complainant City of Lakewood and Cross-Complainants Yaseerarafat G. Shaikh and Mahejabin Mirza's respective Cross-Complaints.

II.

City of Cerritos' MSJ/MSA

Requests for Judicial Notice

City of Cerritos' Requests for
Judicial Notice are granted as to the following documents:

- Plaintiff's

operative Complaint, filed on January 29, 2025 (Exhibit D)

- Plaintiff's

Request for Dismissal of the First and Second Causes of Actions against City of
Cerritos, filed on May 22, 2025 (Exhibit E)

- Declaration

of Angela Hill, as Guardian Ad Litem for Brian Anakin Hill Alamina, filed on
June 6, 2025 (Exhibit F)

- Plaintiff's

Tort Claim against the City of Cerritos signed by Plaintiff's Guardian Ad
Litem, Angela Hill, on December 2, 2024 (Exhibit G)

- City

of Cerritos' Answer, filed on September 15, 2025 (Exhibit H)

- Cross-Complainants

Yaseerarafat G. Shaikh and Mahejabin Mirza's Cross-Complaint against City of
Cerritos, filed on December 3, 2025 (Exhibit I)

- City

of Cerritos' Answer to Cross-Complainants Yaseerarafat G. Shaikh and Mahejabin
Mirza's Cross-Complaint, filed on January 6, 2026 (Exhibit J)

Discussion

City of Cerritos ("Cerritos") now
move for summary judgment or adjudication as to 1) Plaintiff's dangerous
condition of public property, survival action, and wrongful death causes of
action in the Complaint, 2) Cross-Complainant City of Lakewood's
Cross-Complaint for equitable indemnity, contribution, declaratory relief, and 3)
Cross-Complainants Yaseerarafat G. Shaikh and Mahejabin Mirza's Cross-Complaint
for equitable indemnity, contribution, declaratory relief.

Dangerous Condition of Public Property, Survival Action,
and Wrongful

Death

A public entity may be liable for
a dangerous condition of public property if 1) the property was in a dangerous
condition at the time of the injury, 2) the dangerous condition caused the
injury, 3) the condition created a reasonably foreseeable risk of the type of
injury that occurred, and 4) either a negligent or wrongful act or omission of
an employee within the scope of their employment created the condition, or the
public entity had actual or constructive notice of the dangerous condition in
sufficient time to take measures to protect against it. (Gov't. Code §
835; *Sun v. City of Oakland* (2008) 166 Cal.App.4th 1177,
1183.)

“Whether property is in a
dangerous condition often presents a question of fact, but summary judgment is
appropriate if the trial or appellate court, viewing the evidence most
favorably to the plaintiff, determines that no reasonable person would conclude
the condition created a substantial risk of injury when such property is used
with due care in a manner which is reasonably foreseeable that it would be
used.” (*Sambrano v. City of San Diego* (“*Sambrano*”) (2001) 94
Cal.App.4th 225, 234, citing Gov't. Code, § 830.2.)

The legal standards for survival
action and wrongful death causes of action have been previously stated.

i.

Control over the Incident Location

A public entity is
liable if the injury occurred on property that it owned or controlled.
(See Gov't. Code, § 830, subd. (c).)

Cerritos initially argues
that it did not own or control the eastbound lanes of travel where the
subject incident occurred. (See UMF Nos. 1, 5.)

In opposition, Plaintiff argues

that Cerritos' own witness testified that the attempted U-turn that caused the subject incident occurred half in Lakewood, half in Cerritos. (Lee Dep., 63:6-14.) Further, City of Lakewood's city engineer Dario Simoes testified that, for traffic engineering purposes, Lakewood and Cerritos share 50/50 responsibility for the median. (Simoes Dep., 87:19-88:1.) Further, "the misaligned median was one of the features of the subject roadway that, in combination with other features, constituted a dangerous condition." (Opp., 8:16-17.)

In reply, Cerritos asserts that the alleged dangerous condition involves certain features of the Apartment and of the westbound side of Del Amo Boulevard.

Here, the placement of the median break is part of the alleged dangerous condition. Plaintiff has offered evidence that Cerritos has control of the condition of the median. There, the Court finds that Cerritos has failed to meet its burden of proof with respect to this issue.

ii.

Existence of a Dangerous Condition,
Causation, and Notice

Plaintiff alleges the following dangerous conditions existed on the subject public property: 1) the presence of a left-hand turn lane, 2) the median break placement, 3) the entrance/gate to the adjacent Apartments, 4) the insufficient space for insufficient space for left turning vehicles to effectuate a safe U-turn, 5) the design of the lanes and shoulders, 6) lack of defective warning signs, signals, or other forms of warning, 7) the speed limit, 8) the inadequate visibility, 9) the inadequate accommodation of traffic patterns, 10) the road markings, and 11) the lack of signage creating a concealed hazardous condition. (See Compl., ¶¶ 35(a)-(o).)

Cerritos argues that no dangerous condition existed at the subject roadway. Firstly, sightlines were unobstructed and appropriate as both eastbound and westbound drivers has approximately 680 feet of unobstructed sight. (See UMF nos. 8-9.) Further, the roadway complied with the California Manual on Uniform Traffic Control Devices (MUTCD), a document prepared by Caltrans pursuant to the Vehicle Code. (UMF Nos. 10-12, 14.) Further, the condition of the roadway and traffic controls

were in good condition on the date of the accident. (Ibid.) Cerritos asserts that public entities are only liable for providing roads that are safe for reasonable, foreseeable use. Cerritos argues that “Defendant [Mirza’s] failure to yield the right of way as required by Vehicle Code § 21801 together with Decedent’s driving at speeds in excess of the posted 40 mph speed limit were the causes for the subject collision.” (Mot., 9:22-25, citing UMF Nos. 1-3, 10 – 12, 18, 19, and 21.)

The Court finds that
Cerritos has met its burden of proof.

In opposition, Plaintiff argues that the subject roadway constituted a dangerous condition. Specifically, Plaintiff has identified various conditions that give rise to a genuine dispute of fact as to whether the roadway was unreasonably dangerous, including the following conditions: 1) residents traveling westbound are forced to make a U-turn to enter the Apartments, 2) a left turn marking where no left turn is possible, 3) insufficient radius to make a U-turn, 4) high volume of pedestrian traffic, 5) overlap of drivers exiting the Apartments and drivers making the U-turn, and 6) cars parked in the area of the U-turn. (Kwasniak Decl., ¶¶ 45-262.)

In reply, Cerritos argues that Plaintiff has failed to show how the alleged conditions posed a danger to Defendant Mirza when the accident occurred. For example, there is no evidence that Defendant Mirza had insufficient space to make the U-turn in a single motion. Witness Ali Faraz testified that Defendant Mirza’s vehicle crossed into the number two lane of travel (the right side) before the collision occurred. (See Faraz Depo., 79:22-80:4.) Further, there is no evidence that pedestrians or vehicle exiting the Apartments were present at the time of the subject incident. Thus, Plaintiff’s collection of features are irrelevant to the inquiry of whether the subject incident location was dangerous.

“‘Dangerous condition’ means a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov’t. Code, § 830, subd. (a), emphasis added; see also Gov’t Code, § 830.2.)

The fact that a plaintiff or a third party may have contributed to the plaintiff's injury does not itself absolve the public entity from liability. "The status of a condition as 'dangerous' for purposes of the statutory definition does not depend on whether the plaintiff or other persons were actually exercising due care but on whether the condition of the property posed a substantial risk of injury to persons who were exercising due care." (Cole v. Town of Los Gatos (2012) 205 Cal.App.4th 749, 768; see also Castro v. City of Thousand Oaks (2015) 239 Cal.App.4th 1451, 1459 [finding that "the fact the particular plaintiff may not have used due care is relevant only to his [or her] comparative fault and not to the issue of the presence of a dangerous condition"].)

Thus, the Court's primary inquiry is whether a dangerous condition existed on the subject roadway, regardless of the potential contributive negligence of Plaintiff and Defendant Mirza.

The Court finds that Plaintiff has failed to establish a triable issue of fact as to whether a dangerous condition existed at the subject roadway, and relatedly, the elements of causation and notice. The Court agrees with Cerritos that there is no causal nexus between Plaintiff's proffered "amalgam of conditions" and the subject incident. Firstly, the fact that 1) cars were required to make a U-turn at the median break, and 2) there may have been a higher rate of U-turns at the median break, are insufficient to show that there was a dangerous condition that caused an accident, for reasons discussed in Greystar and B9's Motion for Summary Judgment.

Further, there is no evidence that increased pedestrian movement, busy traffic conditions on the eastbound road, or a car exiting the Apartment parking lot gate had any effect on Defendant Mirza or Decedent. Additionally, Plaintiff offers no evidence that Defendant Mirza had issues making a U-turn at the median break due to 1) a misleading left arrow symbol, and 2) an insufficient turn radius (due to street parking or otherwise), such that her inability caused the accident. Cerritos points out that Defendant Mirza was familiar with the U-turn area and that she had no issues making the turn for the past 5 years that she lived at the Apartments. (UMF No. 20.)

Plaintiff's assertion that

the subject roadway is dangerous based on the proffered features is only speculative, where there is no evidence that the features had an impact on the subject incident. (See *Salas v. Department of Transportation* (2011) 198 Cal.App.4th 1058, 1070 [“[T]hird party conduct, by itself, unrelated to the condition of the property, does not constitute a ‘dangerous condition’ for which a public entity may be held liable. There must be a defect in the physical condition of the property and that defect must have some causal relationship to the third party conduct that injures the plaintiff.”], internal quotations and citations omitted, emphasis added.) The Court notes that Plaintiff does not specifically address the element of causation in the opposition. The Court notes that Plaintiff’s expert explicitly stated that he does not opine on legal causation. (See *Kwasniak Decl.*, ¶ 3.)

Plaintiff has also failed to produce evidence contradicting Cerritos’ evidence that there have been no prior similar accidents or complaints regarding the median break and left turn pocket in the past 10 years. (UMF No. 19.) This evidence bears on 1) whether a dangerous condition existed, and 2) whether Cerritos had actual or constructive notice of the alleged dangerous condition. (See *Sambrano*, *supra*, 94 Cal.App.4th at p. 243 [finding that “the evidence of ‘safety history’ offered by the [defendant city] (the lack of prior accidents over five years’ use of the park) was relevant to the definition of a dangerous condition under section 830, subdivision (a)”]; see also *Martinez v. City of Beverly Hills* (2021) 71 Cal.App.5th 508, 521-522 [finding no triable issue of material fact existed as to whether defendant city has notice of the dangerous condition where the city did not receive any complaints in the prior 6 years and did not receive claims/lawsuits in the prior 15 years].) The Court notes that Plaintiff does not specifically address the element of notice but only argues, without evidence, that “a public entity exercising reasonable care would have recognized that there was a problem.” (Opp., 11:6-7.)

Based on the foregoing, the Court finds that Plaintiff has failed to establish a triable issue of fact as to 1) whether a dangerous condition existed when the property is used with reasonable care, 2) causation, and 3) notice. The Court grants the Motion on these grounds.

Governmental Immunities

Because the Motion is

granted on grounds that the Plaintiff cannot establish certain elements of the dangerous condition of public property claim, the Court need not address whether design immunity (under Government Code section 830.6) or immunity for failure to provide traffic controls (under Government Code section 830.4) applies.

Standing

Cerritos argues that Plaintiff must establish that he has standing as a nonmarital child. Cerritos argues that Plaintiff has not provided clear and convincing evidence of paternity. The Court applies a similar analysis as discussed in the Greystar and B9's Motion for Summary Judgment as to the issue of standing.

The Court notes that, for the first time on reply, Cerritos refers to "statutory requirements for establishing a qualifying relationship" for standing, citing provisions of the Probate Code and the Family Code. (See Reply, 7:3-28.) Yet the Court notes that such provisions are merely different mechanisms to establish paternity.

"A

nonmarital child can establish he or she is entitled to take from the decedent under California's intestate succession laws — and thus establish standing to sue for his or her biological father's wrongful death — in a number of different ways: (1) by showing the father openly held out the child as his own (§ 377.60, subd. (a); Prob. Code, § 6453, subd. (b)(2)); (2) by showing it was impossible for the father to hold out the child as his own during his lifetime (e.g., if the father died before the child was born) and establishing paternity by clear and convincing evidence (§ 377.60, subd. (a); Prob. Code, § 6453, subd. (b)(3); *Cheyanna M.*, supra, 66 Cal.App.4th at p. 877, 78 Cal.Rptr.2d 335); (3) by showing the child resided with the father for at least 180 days immediately before his death and was dependent on the father for at least half of his or her support (§ 377.60, subd. (c)); or (4) by producing a court order entered during the father's lifetime declaring paternity (§ 377.60, subd. (a); Prob. Code, § 6453, subd. (b)(1)).

(*Stennett v. Miller* (2019)

34 Cal.App.5th 284, 296, emphasis added.)

Under Probate Code section 6453,

subdivision (a), a natural parent-child relationship is established if a Uniform Parentage Act (Family Code section 7600 et. seq.) presumption applies and has not been rebutted. Plaintiff need not prove that all presumptions apply. Probate Code section 6453, subdivision (b)(1)-(3) offer additional mechanisms to show paternity. As relevant to this case, Probate Code section 6453, subdivision (b)(3) and the Cheyanna case applies to this fact pattern because it is impossible for Decedent to hold out the child as his own under subdivision (b)(2). Accordingly, it is irrelevant that the Berry case was ruled upon before the Uniform Parentage Act was enacted.

Regardless, even if Plaintiff might be able to establish standing, summary judgment may still be granted because no triable issue of fact exists as to the elements of dangerous condition, causation, and notice. Because summary judgment is granted as to the Complaint, summary judgment may also be granted as to Cross-Complainants Yaseerarafat G. Shaikh and Mahejabin Mirza's Cross-Complaint for equitable indemnity, contribution, and declaratory relief.

Conclusion

Based on the foregoing, Cerritos' Motion for Summary Judgment is GRANTED as to Plaintiff's Complaint and Cross-Complainants Yaseerarafat G. Shaikh and Mahejabin Mirza's Cross-Complaint.

III.

City of Lakewood's MSJ/MSA

Requests for Judicial Notice

City of Lakewood's Requests for Judicial Notice are denied as to Exhibit A [Google street view image], and granted as to Exhibit B [Lakewood Municipal Code sections].

Discussion

City of Lakewood ("Lakewood") now moves for summary judgment or summary adjudication as to 1) Plaintiff's dangerous condition of public property, survival action, and wrongful death causes of action in the Complaint, and 2) any derivative Cross-complaints—i.e., Cross-Complainant B9's Cross-Complaint for equitable indemnity, contribution,

and declaratory relief. The Court notes that Plaintiff filed a Request for Dismissal as to the first and second causes of action in the Complaint against Lakewood on June 5, 2025.

Design Immunity (Gov't. Code § 830.6)

Lakewood moves for summary judgment or adjudication on the Complaint and Cross-Complaint on grounds that it can establish the affirmative defense of design immunity.

Design immunity is an affirmative defense often raised on motion for summary judgment, enabling the trial court to find the defense established as a matter of law. (*Grenier v. City of Irwindale* ("Grenier") (1997) 57 Cal.App.4th 931, 939-940.) Generally, Government Code section 830.6 provides that a public entity is not liable for injury caused by the plan or design of a construction or improvement to public property where the plan or design was approved in advance of the construction or improvement by the legislative body or employee exercising discretionary authority to give such approval. (See Gov't. Code, § 830.6.)

A public entity claiming design immunity must establish: (1) a causal relationship between the plan or design and the accident; (2) discretionary approval of the plan or design prior to construction, or that the plan or design was prepared in conformity with standards previously so approved; and (3) substantial evidence supporting the reasonableness of the plan or design. (*Cornette v. Department of Transportation* (2001) 26 Cal.4th 63, 68-69.)

"The first two elements, causation and discretionary approval, may only be resolved as issues of law if the facts are undisputed. [Citation.] The third element, substantial evidence of reasonableness, requires only evidence of solid value that reasonably inspires confidence. [Citation]." (*Alvis v. County of Ventura* (2009) 178 Cal.App.4th 536, 550.)

i.

Causal Relationship

The first question is whether there is undisputed evidence that the accident was caused by a design

defect, and not some other cause. (Grenier, *supra*, 57 Cal.App.4th at p. 940.)

In the Complaint, Plaintiff

alleges that the presence of a left turn lane and the “exit-only” gate at the Apartments, which forced drivers traveling westbound, combined with other conditions of the roadway, made up a dangerous condition. (Compl., ¶¶ 1, 3.)

The Court notes that, generally, a city may rely on the allegations of the complaint to establish causation for the first element of design immunity. (Alvis, *supra*, 78 Cal.App.4th at p. 550.)

As to causation, Lakewood

correctly notes the following: “If there is in fact no causal relationship between the accident and the driveway configuration, then there is *ipso facto* no basis for liability against the City, and it is not necessary to reach the remainder of the immunity issues.” (Mot., 12:26-28.)

As discussed in Cerritos’

Motion for Summary Judgment, the Court found that, based on the undisputed evidence, Plaintiff has failed to establish that Decedent’s injuries were caused by a dangerous condition of public property. Lakewood provides consistent evidence that Cerritos owns and controls the north half of Del Amo Boulevard (westbound lanes) and City of Lakewood owns and controls the south half of Del Amo Boulevard (eastbound lanes). (Simoes Decl., ¶¶ 4-5.) To reiterate, the Court found that Cerritos and Lakewood shared liability over the condition of the median break. The Court found that Plaintiff failed to meet his burden as to the existence of a dangerous condition and causation. Specifically, the Court found that Plaintiff failed to establish how the alleged defects in the roadway configuration were present during and contributed to the accident. Thus, for reasons discussed in Cerritos’ Motion for Summary Judgment, the Court similarly finds that Plaintiff has failed to establish a triable issue of fact as to essential elements of the existence of a dangerous condition and causation against Lakewood.

In other words, since

Plaintiff cannot establish a *prima facie* case for a dangerous condition of public property claim, the Court finds that there is no need to address design immunity defense. There is no underlying design defect. Therefore, the Court need not discuss the second and third elements of discretionary approval and reasonableness of design, respectively.

The Court grants Lakewood's
Motion for Summary Judgment on these grounds.

Conclusion

Based on the foregoing, Lakewood's
Motion for Summary Judgment is GRANTED as to Plaintiff's Complaint and Greystar
and B9's Cross-Complaint.

IV.

Yaseerarafat G. Shaikh and Mahejabin
Mirza's MSJ/MSA

Evidentiary Objections

Yaseerarafat G. Shaikh and Mahejabin
Mirza's evidentiary objections are overruled as to Nos. 1-6.

Discussion

Yaseerarafat G. Shaikh ("Shaikh")
and Mahejabin Mirza ("Mirza") now move for summary judgment or adjudication as
to 1) all causes of action in Plaintiff's Complaint, 2) Cross-Complainant
Greystar's Cross-Complaint for equitable indemnity, contribution, declaratory
relief, 3) Cross-Complainant Cerritos' Cross-Complaint for equitable indemnity,
contribution, declaratory relief, 4) Cross-Complainant Lakewood's Cross-Complaint
for equitable indemnity, contribution, declaratory relief, and 5)
Cross-Complainant B9's Cross-Complaint for equitable indemnity, contribution,
declaratory relief.

First through Fourth Causes of Action

The Court provides the
following context: On June 27, 2025, Plaintiff amended the Complaint to name
Shaikh as Doe 1 (erroneously sued as "Shaikh Yaseerarafat"). The same day,
Plaintiff named Mirza as Doe 2.

The Complaint alleges the
following:

“1.

On June 24, 2024, motorcyclist BRIAN ALAMINA (“Decedent”) was traveling eastbound on Del Amo Boulevard between Norwalk Boulevard and Claretta Avenue when a vehicle operated by Yaseerarafat G. Shaikh attempted a U-turn and collided with BRIAN ALAMINA. The impact launched BRIAN ALAMINA from his motorcycle and he subsequently passed away as a result of this incident (“Subject Incident”). The negligent acts and omissions of the Defendants as herein alleged took place in or about the City of Cerritos, City of Lakewood, in the County of Los Angeles, State of California.”

2.

[...] “Defendants. . .and DOES 1 through 100, inclusive, by and through its employees, agents, and contractors, negligently and improperly planned, designed, constructed, controlled, maintained, repaired, and/or inspected the roadway and surrounding areas where the Subject Incident occurred, leading to the Subject Incident.

3.

The above-described negligence and dangerous condition of the public property at this location directly contributed to the Subject Incident. [...]”

(Compl., ¶¶ 1-3.)

Shaikh and Mirza argue that the first through fourth causes of action are based on allegations that Defendants had a duty of care to “plan, design, build, construct, maintain, operate, control, repair, and/or monitor the roadway and surrounding areas in a reasonable and safe manner,” and that Defendants breached such duty by “negligently, carelessly, recklessly, and/or unlawfully planned, designed, built, constructed, maintained, operated, controlled, repaired, and/or monitored the roadway and surrounding areas.” (See Compl., ¶¶ 15-18, 23-29, 34-40.) The survival cause of action incorporates the allegations of the first to third causes of action. (Compl., ¶ 44.) However, Shaikh and Mirza did not own, lease, occupy, or control the roadway and surrounding areas where the subject incident occurred. (Gottlieb Decl., ¶¶ 3, 6.) Neither were they involved in any construction projects related to the Apartments. (Gottlieb Decl., ¶¶ 4, 7.)

Further, the third cause of action for dangerous condition of public property under Government Code section

835 does not apply to Shaikh and Mirza because they are private citizens. (See Gottlieb Decl., ¶¶ 2, 5.) Shaikh and Mirza cite Government Code section 811.2 [defining “public entity”].

In opposition, Plaintiff

cites to evidence establishing that 1) Mirza was the driver that hit and killed Decedent, and 2) Shaikh was the owner of the vehicle at the time. Plaintiff advances theories based on motor vehicle negligence and liability based on Vehicle Code section 17150. Plaintiff states the following: “In their motion, Defendants Shaikh and Mirza do not even attempt to address their liability as the owner and driver respectively of a vehicle involved in a deadly collision. Instead, they allege in their motion that they ‘did not own, possess, or control the subject roadway or the adjacent apartment complex.’ (Opp’n, at 10.) This is undisputed but also does not resolve the issue of whether they were negligent.” (Opp., 11:6-10.) As to the dangerous condition of public property argument, Plaintiff concedes that Government Code section 835 does not apply to Shaikh and Mirza.

In reply, Shaikh and Mirza

argue that the pleadings define the scope of summary judgment motions. A plaintiff cannot oppose a motion for summary judgment based on facts or legal theories that are outside of the scope of the complaint. Here, the Complaint does not allege that any defendant negligently operated a motor vehicle and that such negligence caused the subject accident. Shaikh and Mirza note that, by naming them as Doe 1 and 2, “Plaintiff attempted to add [them] to her preexisting causes of action and allegations against the government entities for negligence and premises liability in the ownership, control, design, and maintenance of the allegedly dangerous public roadway.” (Reply, 11:11-14.) However, Plaintiff fails to present any evidence creating a triable issue of fact as to those causes of action.

“A ‘defendant moving for

summary judgment need address only the issues raised by the complaint; the plaintiff cannot bring up new, unpleaded issues in his or her opposing papers.’ [Citation.] (St. Myers v. Dignity Health (“St. Myers”) (2019) 44 Cal.App.5th 301, 313; see also Ryan v. Real Estate of the Pacific, Inc. (2019) 32 Cal.App.5th 637, 642 [“Because summary judgment is defined by the material allegations in the pleadings, [court] first look to the pleadings to identify the elements of the causes of action for which relief is sought.”].)

Firstly, the Court finds

that Plaintiff concedes that Government Code section 835 does not apply to Shaikh and Mirza as private citizens. Summary judgment is properly granted as to that cause of action where no triable issue of fact exists.

In assessing the Complaint,

the Court agrees with Shaikh and Mirza that the first, second, and fourth causes of action are based on allegations that all Defendants “negligently, carelessly, recklessly, and/or unlawfully planned, designed, built, constructed, maintained, operated, controlled, repaired, and/or monitored the roadway and surrounding areas.” (See Compl., ¶¶ 15-18, 23-29, 44.) These allegations limit the factual issues to be decided by a motion for summary judgment. Plaintiff has conceded that Shaikh and Mirza are not liable under this theory. (See Opp., 11:6-10.) The Court cannot consider Plaintiff’s evidence or arguments to the extent they are offered in support of the first, second, and fourth causes of action, as they purportedly support new theories of motor vehicle negligence and liability based on Vehicle Code section 17150. (See St. Myers, supra, 44 Cal.App.5th at p. 313.) Such theories raise new factual issues that are not appropriate for this Motion as to the first, second, and fourth causes of action.

The Court notes that Shaikh

and Mirza does not move for summary judgment or adjudication as to the fifth cause of action for wrongful death on these grounds.

Therefore, the Court grants

summary adjudication as to the first through fourth causes of action.

Standing

Shaikh and Mirza move for

summary judgment or adjudication as to the survival and wrongful death causes of action on grounds that Plaintiff cannot establish the element of standing. Shaikh and Mirza acknowledge that the standard of Probate Code section 6450, subdivision (b)(3) and the Cheyanna case applies here. Shaikh and Mirza argue that Plaintiff has failed to establish Decedent’s paternity of Plaintiff with clear and convincing evidence, such as with DNA testing. Shaikh and Mirza provide evidence that Decedent’s Mother, Selena Alamina, stated in an “Affidavit of Heirs” form, provided by Defendants’ insurer, Mercury Insurance Company (“Mercury”), that there were no other heirs in existence. (Mize Decl., ¶ 5;

COE, Exh. 25.) On September 24, 2025, Mercury informed Plaintiff's counsel that it had received an Affidavit of Heirs of the Decedent that only identified Decedent's mother as the Decedent's heir. (Mize Decl., ¶ 7, COE, Exh. 27.) To date, Plaintiff has not produced to Mercury an updated Affidavit of Heirs identifying himself as the Decedent's heir. (Gottlieb Decl., ¶ 8, COE, Exh. 21.) Further, on August 5, 2024, Mercury received a phone call from Selena Alamina's counsel that she questioned whether Plaintiff was Decedent's biological child because Ms. Hill allegedly slept with the Decedent's best friend. (Mize Decl., ¶ 9, COE, Exh. 29.)

Further, Plaintiff admitted that 2) there is no evidence establishing by clear and convincing evidence that Decedent is Plaintiff's biological father, 2) there are no DNA testing results establishing by clear and convincing evidence that Decedent is Plaintiff's biological father, and 3) no paternity tests have been conducted establishing that the Decedent is Plaintiff's biological father. (See COE, Exh. 20.)

In opposition, Plaintiff makes similar arguments made in its opposition to Greystar and B9's Motion for Summary Judgment regarding standing. Plaintiff asserts that Shaikh and Mirza's evidence is inadmissible to establish a lack of paternity as it involves multiple levels of hearsay.

In reply, Shaikh and Mirza's evidence is admissible. Firstly, Mercury's agent, Nicole Mize, can properly authenticate records received in the court of its business. Second, Decedent's mother's Affidavit of Heirs is admissible under the hearsay exception for statements concerning the declarant's own family history under Evidence Code sections 1310-1311. Here, it is undisputed that Selena Alamina is Decedent's biological mother, and thus, her statements concerning her son's family history are admissible. Lastly, Shaikh and Mirza assert that the evidence is admissible because it is not offered for the truth of the matters asserted, but only to satisfy their burden of production on this Motion.

The Court finds that, even if Decedent's mother's Affidavit of Heirs is admissible, and Shaikh and Mirza have met their burden of proof, Plaintiff's evidence is sufficient to create a triable issue of fact. The Court's reasoning as to why Plaintiff's evidence is sufficient is explained in its ruling on Greystar and B9's Motion for Summary Judgment. At this stage, the Court finds that there is conflicting evidence as

to whether Plaintiff can establish by clear and convincing evidence that Plaintiff is Decedent's child. Thus, there is a triable issue of fact as to the issue of standing as relevant to the fifth cause of action for wrongful death.

As to the survival cause of action, the Court granted summary adjudication on other grounds.

Conclusion

Based on the foregoing, Shaikh and Mirza's Motion for Summary Adjudication is GRANTED as to the first, second, third, and fourth causes of action and is DENIED as to the fifth cause of action.